

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit on the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to login, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

May 29, 2026

#	Case Name	Tentative
1.	Lomakin vs. Cadaval 24-01373551	Motion for Attorney Fees The motion by defendants Manuel and Dana Cadaval as Trustees of the Cadaval Family Trust for attorney fees is DENIED. (Civ. Code, § 1717, subds. (a) [prevailing party attorney fees pursuant to contract], (b)(2) [“Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section”].) Moving parties seek attorney fees based on a prevailing party attorney fee provision in the parties’ “Residential Purchase Agreement and Joint Escrow Instructions” [RPA]. (Thomas Decl. in support of motion, Ex. 1, ¶ 22 [“In any action, proceeding, or arbitration between

	Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 30A”].) Moving parties acknowledge that in light of plaintiffs’ voluntary dismissal, they may not recover attorney fees in connection with plaintiffs’ 1st and 2nd causes of action for breach of contract. (Civ. Code, § 1717, subd. (b)(2).) Thus, if attorney fees are recoverable at all, they are only recoverable if plaintiffs’ remaining claim for quiet title is not an “action on a contract.” The court finds that the quiet title claim is also “on a contract,” as it is based on the RPA. (<i>Kangarlou v. Progressive Title Co., Inc.</i> (2005) 128 Cal.App.4th 1174, 1178–1179 [“Whether an action is based on contract or tort depends upon the nature of the right sued upon, not the form of the pleading or relief demanded ... [i]f based on breach of promise it is contractual; if based on breach of a noncontractual duty it is tortious”]; accord, <i>Kachlon v. Markowitz</i> (2008) 168 Cal.App.4th 316, 347 [“In determining whether an action is ‘on the contract’ under section 1717, the proper focus is not on the nature of the remedy, but on the basis of the cause of action”]; <i>Boyd v. Oscar Fisher Co.</i> (1989) 210 Cal.App.3d 368, 377 [in determining whether action is contractual, “the court should consider the pleaded theories of recovery, the theories asserted and the evidence produced at trial, if any, and also any additional evidence submitted on the motion in order to identify the legal basis of the prevailing party's recovery”].) The allegations of plaintiffs’ Complaint show that all three claims, including the quiet title claim, were based on the RPA. (<i>Id.</i> at 377 [“the court should consider the pleaded theories of recovery”]; Complaint, ¶ 8, Ex. 1 [RPA]; see also ¶¶ 14-16, 25, 37 [alleging defendants’ breach], 42 [incorporating prior allegations based on RPA in quiet title claim], 43 [seeking to quiet title against claims “in the Subject Property arising from the sale transaction”], 45 [seeking to quiet title “as of the date of the breach of Purchase Contract or November 30, 2023; or alternatively, the date of the filing of this complaint”].) Moving parties have not provided any evidence to the contrary; their supporting declaration and exhibits are silent on this point, while plaintiffs do provide evidence that the quiet title action is contractual in nature. (Luu Decl., ¶¶ 5 and 6 [“Plaintiffs’ quiet title claim was based on Plaintiffs’ alleged contractual and equitable rights arising from the Residential Purchase Agreement and the parties’ dispute regarding performance and closing of escrow ... Plaintiffs did not
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allege any independent tort claim in this action, including fraud, negligent misrepresentation, concealment, trespass, nuisance, or other non-contract tort claim”]; *Boyd v. Oscar Fisher Co.*, *supra* at 377 [court may consider “evidence submitted on the motion”].)

Further, although not discussed by the parties, moving parties provide no evidence that they complied with the mediation condition precedent, or that this condition was excused. (Thomas Decl., Ex. 1, ¶¶ 22 [prevailing party entitled to attorney fees “except as provided in paragraph 30A”], 30A [“If, for any dispute or claim to which this paragraph applies, any Party (i) commenced an action without first attempting to resolve the matter through mediation, or (ii), before commencement of any action, refuses to mediate after a request has been made, then that Party shall not be entitled to recover attorney fees”]; *Lange v. Schilling* (2008) 163 Cal.App.4th 1412, 1417 [failure to comply with mediation condition precedent in a standard residential purchase agreement precludes attorney fee recovery]; *Johnson v. Siegel* (2000) 84 Cal.App.4th 1087, 1101, [“[s]eeking mediation is a condition precedent to the recovery of attorney fees”].)

Finally, moving parties’ judicial estoppel argument was not raised until the Reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence or arguments presented for the first time in the Reply are not considered, unless the opposing party has notice and an opportunity to respond].) Even if considered, it is not persuasive; plaintiffs’ prior ex parte application to consolidate (ROA 18) did not argue that their quiet title claim was not contractual in nature. (*Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987 [judicial estoppel elements, including prior “totally inconsistent” position]; ROA 18 at 7:27-8:2 [“Plaintiffs contend they have ownership and possessory rights to the Subject Property pursuant to the written purchase sale agreement between Plaintiffs and Defendants”].)

Moving parties’ request for judicial notice is DENIED. (Cal. Rules of Court, Rule 3.1113, subd. (I) [request must be made in separate document]; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 889 [while judicial notice may be taken of the existence of government websites, “the same is not true of their factual content ... we know of no ‘official Web site’ provision for judicial notice in California”]; *Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization* (2008) 160 Cal.App.4th 514, 519 [“although it might be appropriate to take judicial notice of the existence of the websites, the same is not true of their factual content;” *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 295 [the court is not required to take judicial notice of irrelevant documents].)

		Plaintiffs Timothy David Lomakin and Alissa Claire Lomakin shall give notice.
2.	Afzal vs. Genesis Motor America, LLC 25-01519236	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Genesis Motor America, LLC’s motion to compel arbitration is DENIED. Defendant seeks an order compelling plaintiff Uzma Afzal to arbitrate his claims pursuant to (1) an arbitration agreement contained in the Genesis “2023 Owner’s Handbook and Warranty Information” booklet (owner’s handbook), and (2) an arbitration provision contained in a Hyundai Bluelink/Genesis Connected Services Agreement (CSA). <u>Owner’s handbook, mutual assent.</u> To the extent defendant relies on the arbitration agreement in the owner’s handbook, defendant has failed to meet its burden to demonstrate the existence of this agreement. (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 [FAA applies pursuant to the terms of arbitration agreement]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 680-681 (<i>Johnson</i>) [burden]; see also Villa Decl at Ex. 2 [handbook excerpts].) Defendant has failed to demonstrate plaintiff’s mutual assent to the arbitration agreement in the owner’s handbook. (See <i>Berman v. Freedom Financial Network, LLC</i> (9th Cir. 2022) 30 F.4th 849, 855 [under FAA, state law governs contract formation]; Civ. Code, § 1550 [contract elements]; see also <i>Johnson, supra</i>, 57 F.4th at pp. 680-681 [arbitration is strictly a matter of consent; “ ‘a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ ”]; accord, <i>Coinbase, Inc. v. Suski</i> (2024) 602 U.S. 143, 148.) To form a contract under California law, there must be mutual assent. (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294 (<i>Herzog</i>); <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862 (<i>Long</i>).) “ ‘[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.’ ” [Citation.]” (<i>Long</i>, at p. 862.) “ ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The

parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (*Herzog*, at pp. 1293-1294.)

Assent, however, requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944 (*Blizzard*); *Stover v. Experian Holdings, Inc.* (9th Cir. 2020) 978 F.3d 1082, 1086 [“notice—actual, inquiry, or constructive—is the touchstone for assent to a contract”]; see *Herzog*, *supra*, 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1089.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the *same thing*, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms.” (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461 (*Sellers*); accord, *Herzog*, at p. 1294.) “[W]hether the terms appear on a physical piece of paper or a computer screen, ‘California law is clear—“an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.” ’ [Citation.]” (*Sellers*, *supra*, at p. 461; accord, *Herzog*, *supra*, 101 Cal.App.5th at pp. 1293-1294; *Long*, *supra*, 245 Cal.App.4th at p. 862.)

Nothing shows defendant put plaintiff on notice of the arbitration agreement within the approximately 46-page “Owner’s Handbook and Warranty Information” booklet prior to plaintiff’s purchase of the vehicle, and nothing from its cover suggests it contains an independent arbitration agreement to which plaintiff’s assent will be deemed merely by driving the vehicle off the lot. (See *Villa Decl.* at Ex. 2.) The fact that the arbitration agreement appears in the “owner’s handbook” indicates plaintiff would have had no reason to discover it until sometime after he had already become the “owner” of the vehicle and unwittingly assented to the agreement by driving it; and nothing suggests plaintiff would have had reason to reference the “warranty information” booklet within the first 30 days of ownership, such that he should have discovered the arbitration agreement in time to opt out.

Owner’s handbook, equitable estoppel. Defendant contends plaintiff is nevertheless equitably estopped from denying the existence of the arbitration agreement because he relies on the warranty in the handbook as a basis for his claims.

This is a common argument. However, the argument is unpersuasive. Equitable estoppel requires the existence of a “contract.” (See, e.g., *Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 893 [sine qua non of equitable estoppel is plaintiff’s actual dependence on the underlying contract].) Here, defendant conflates a “warranty” with a “contract,” both of which are legal terms of art, and not necessarily the same.

A “contract” is an agreement that requires mutual assent and consideration. (Civ. Code, § 1550 [mutual assent and consideration are “essential to the existence of a contract”]; *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1231 [“ ‘the vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration’ ”].)

An express warranty is an assurance of a product’s utility and performance that accompanies its purchase and, unlike a “contract,” does not require mutual assent. (See Civ. Code, § 1791.2, subd. (a) [“ ‘Express warranty’ means: (1) A written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance; or (2) In the event of any sample or model, that the whole of the goods conforms to such sample or model.”]; *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1134 [“Express warranties may arise from sources outside a ... contract, including statements in a manufacturer’s brochure...”]; *Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1258-1259 [holding service contracts and express warranties are mutually exclusive, explaining “an express warranty” is “part of the purchase of a consumer product, and a representation of the fitness of that product,” whereas the purchase of a service contract is distinct from the purchase of the product itself].)

Defendant has failed to show that the warranty in the handbook constitutes a “contract” in the traditional sense, as opposed to a mere “warranty” or assurance of the vehicle’s utility and performance that accompanied its purchase. The mere fact that defendant provided an express warranty guaranteeing the performance of the vehicle does not necessarily mean the parties executed a “contract” by which they “mutually” agreed to certain obligations—particularly those independent from and unrelated to the fitness of the product and of which plaintiff had no notice—that plaintiff is now attempting to disclaim, which is the situation that equitable estoppel is meant to address. (See *Ford Motor Warranty Cases*, *supra*, 317 Cal.5th at p.

1136 [with equitable estoppel, “the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate”].) Having failed to show to the warranty constitutes a “contract” in the traditional sense to which plaintiff has mutually agreed in the first place, defendant has failed to show he should be equitably estopped from avoiding the arbitration agreement therein. (See *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 220 [“ ‘[t]he linchpin for equitable estoppel is equity—fairness’ ”].)

Furthermore, even if defendant had established that the warranty was a “contract,” which it has not, equitable estoppel does not apply because plaintiff’s claims do not rely on the substantive terms of the subject warranty; they rely on obligations outside the warranty imposed by statute. (See *Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1207-1208.) “It is not enough that the complaint ... includes claims that ‘ “presum[e] the existence of” ’ such an agreement. [Citation.] Instead, the causes of action ... must be ‘ “intimately founded in and intertwined” with the underlying contract obligations.’ [Citation.] Indeed, there must be ‘actual reliance on the terms of the agreement’ [citation], and the causes of action must premise liability on ‘duties imposed by the agreement’ itself[citation].” (*Ibid.*)

Plaintiff has alleged three causes of action in this case for (1) breach of implied warranty in violation of the Song-Beverly Act, (2) breach of express warranty in violation of the Song-Beverly Act, (2) and (3) violation of Song-Beverly Act at Civil Code section 1792.3. All three allege various violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. Manufacturers may ... make express warranties, which trigger various statutory provisions covering notice and repair or replacement of nonconforming goods. (See Civ. Code, § 1793 et seq.)” (*Ford Motor Warranty Cases, supra*, 17 Cal.5th at pp. 1133-1134.) These obligations are not terms of the warranties themselves but “are imposed by statute.” (*Ibid.*)

Plaintiff’s second and third causes of action are based on defendant’s violations of these statutory obligations—i.e., the failure to promptly provide restitution—rather than a term of the warranty itself. (Civ. Code, § 1793.2, subs. (a)(3), (b), (d); see Compl. ¶¶ 6-7, 15-16, 25-41.) As for the first cause of action, it arises from a breach of the implied warranty of merchantability, which “arises by operation of law.” (*Ford Motor Warranty Cases*, at p. 1134; see Compl. ¶¶ 18-23.) Thus, none of these claims “premise liability on ‘duties imposed by the agreement’ itself...” (*Ballesteros v. Ford Motor Co., supra*, 109 Cal.App.5th at pp. 1207-1208.) Therefore, even if the warranty

was a “contract” in the traditional sense (which again, defendant has not shown), equitable estoppel does not apply because plaintiff’s claims do not rely on the substantive terms of the warranty itself.

The CSA. To the extent the motion is based on the arbitration provision in the CSA, defendant has failed to demonstrate it covers plaintiff’s claims in this case. While the arbitration provision purports to cover any and all disputes between the parties regarding “the [v]ehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ ” before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.)

Here, the CSA governs the provision of “Connected Services,” the wireless/technology/roadside assistance services received as part of plaintiff’s enrollment in a Bluelink Connected Services subscription. (Rao Decl. at Ex. E.) The complaint in this case alleges the vehicle contained defects and nonconformities to warranty. (See, e.g., Compl. ¶¶ 2, 8-16, 19-20, 25-27, 33-41.) The “Connected Services” are not at issue in this case and plaintiff’s claims do not arise out of the relationship created by the CSA.

Request for judicial notice. Defendant’s request for judicial notice is GRANTED as to the complaint (RJN ¶ 1; see Evid. Code, § 452, subd. (d)) and otherwise DENIED. Judicial notice of the owner’s handbook is unnecessary as defendant has authenticated it on reply. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [denying request where judicial notice is not necessary]; *Building Industry Assn. of the Bay Area v. City of San Ramon* (2016) 4 Cal.App.5th 62, 73, fn. 11 [same]; see also Montalvan Decl. ¶¶ 2-7, Ex. A.)

The Case Management Conference is CONTINUED to August 27, 2026, at 9:30 a.m. in Department C12.

Defendant shall give notice.

3.	Charles Schwab & Co, Inc. vs. O'Callaghan 25-01536620	Motion - Other (For Order Governing Custody of Interpleaded Accounts) Plaintiff Charles Schwab & Co., Inc. UNOPPOSED motion to interplead funds is granted. The court finds as follows: 1. This is a proper interpleader action, and the Accounts identified in the Verified Complaint are deemed to have been interpleaded, notwithstanding that they remain in the physical custody of Schwab; 2. The Accounts are deemed to be under the jurisdiction of the Court; 3. Until further order of the Court: *Schwab shall maintain custody of the Accounts; *O'Callaghan may continue to effect securities trades within the Accounts in the ordinary course; however, no funds, sale proceeds, securities, or other property shall be withdrawn, transferred out of, or distributed from the Accounts absent a further order of the Court or the written agreement of all claimants; *Schwab may continue to impose and maintain reasonable restrictions necessary to preserve the Accounts and comply with applicable law; *Schwab may charge its usual and customary fees for maintaining the Accounts and may deduct such fees from the Accounts in the ordinary course. Nothing in the order shall be deemed an adjudication of the merits of any party's claims, all of which are expressly reserved. Schwab to give notice of this ruling.
4.	Suarez vs. FCA US LLC 25-01526430	1. Demurrer to Complaint 2. Case Management Conference VACATED

5.	Coronado vs. Sub-zero Excavating, Incorporated 24-01443383	1. Demurrer to Complaint (x2) 2. Case Management Conference <u>Motion No. 1</u> The City of Cypress' Demurrer to the Complaint is SUSTAINED. The City's Request for Judicial Notice is GRANTED as to Exhibit A and DENIED as to Exhibit B. A complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10.) A plaintiff must plead such facts as are necessary "to acquaint a defendant with the nature, source and extent of his claims." (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550.) Moreover, "claims against public entities [must] be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) First Cause of Action - Negligence A California public entity is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815(a).) Here, the Complaint does not identify any statutory authority that supports a claim for negligence against the City. The Complaint merely states "Defendants named failed to turn the power lines off at the site. Defendants failed to provide reasonable warning of the 'Dangerous Condition'". There are no facts indicating why the City is liable, or that the incident even occurred on City property. Accordingly, the demurrer to the first cause of action is SUSTAINED. Second Cause of Action – Premises Liability A public entity is liable "for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken
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measures to protect against the dangerous condition.” (Cal. Gov. Code, § 835.)

As with the first cause of action, the Complaint fails to state facts indicating why the City is liable, or that the incident occurred on City property. The Complaint merely states “[t]he lack of diligence by the defendants in not providing notice, locating underground utility, marking the premises, using locating devices, digging, turning off power lines and land surveying caused Plaintiff’s injuries.” Such facts do not sufficiently address the elements of Section 835.

Accordingly, the demurrer to the second cause of action is SUSTAINED.

Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Based upon these grounds, the court sustains the unopposed demurrer. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by the City in the demurrer.

Plaintiff has 30 days leave to amend.

Motion No. 2

The Orange County Fire Authority’s Demurrer to the Complaint is SUSTAINED.

First Cause of Action - Negligence

A California public entity is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815(a).)

Here, the Complaint does not identify any statutory authority that supports a claim for negligence against the OCFA. The Complaint merely states “Defendants named failed to turn the power lines off at the site. Defendants failed to provide reasonable warning of the ‘Dangerous Condition’”. There are no facts indicating exactly why the OCFA is liable to Plaintiff.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action – Premises Liability

a. Failure to Warn

“Count Two” of the Premises Liability claim for “Willful Failure to Warn” includes no allegations other than the form’s boilerplate allegation that the defendant owners willfully or maliciously failed to guard or warn against a dangerous condition.” This is insufficient to state a claim against OCFA as there are no factual allegations that OCFA owned the property or were aware of a dangerous condition on the property.

b. Dangerous Condition of Public Property

A public entity is liable “for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Cal. Gov. Code, § 835.)

Again, the Complaint fails to state any facts demonstrating that the property was in a dangerous condition at the time of the injury or that OCFA had any notice of a dangerous condition.

Moreover, under the Government Claims Act, a complaint must allege that a timely claim was presented to the public entity and that the claim was either rejected or not acted upon within the statutory period. (Gov. Code § 900 et seq.) Here, there are no allegations that Plaintiff complied with the Government Claims Act.

Accordingly, the demurrer to the second cause of action is SUSTAINED in its entirety.

Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported.

		(CRC 3.1113(a).) Based upon these grounds, the court sustains the unopposed demurrer. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by the OCFA in the demurrer. Plaintiff has 30 days leave to amend. The Case Management Conference is CONTINUED to August 21, 2026, at 9:30 a.m. in Department C12. Each Moving Defendant to give notice of these rulings.
6.	Seacoast Capital Partners IV L.P. vs. Martin 25-01473117	1. Demurrer to Amended Cross-Complaint 2. Case Management Conference Cross-Defendant Seacoast Capital Partners IV, LP's demurrer to Cross-Complainants Michael Martin and Philip Nabal's Second Amended Complaint is OVERRULED as to the First Cause of Action and SUSTAINED as to the Second and Third Causes of Action. Cross-Complainants have 30 days to file a Third Amended Cross-Complaint. <u>COA 1: Intentional Interference with Contractual Relations</u> The elements of a cause of action for intentional interference with contractual relations are: (1) a valid contract between the complainant and a third party; (2) the defendant's knowledge of the contract; (3) Intentional conduct on the part of the defendant that was intended to or would necessarily result in a breach or disruption of the contractual relationship; (4) an actual breach or disruption of the contractual relationship; and (5) resulting damages. (See <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55.) The SAXC adequately alleges these elements. Cross-Complainants allege they had a valid contract with DI Overnite, LLC involving a promissory note for \$136,682.95. (SAXC ¶5.) Cross-Complainants allege Cross-Defendants were aware of this relationship as shown by their alleged forgery of a subordination agreement that was intended to subordinate this debt to other debts DI Overnite, LLC owed to Cross-Defendants. (SAXC ¶¶7-8.) The SAXC alleges that Cross-Defendants engaged in conduct that would necessarily result in a disruption of the contract between Cross-Complainant DI Overnite,

LLC by consenting to DIO incurring millions of dollars to indebtedness to third parties so as to make it impossible for DIO to fulfill its repayment obligations to Cross-Complainant. (See SAXC ¶¶11-13.) The SAXC alleges resulting damages. (See SAXC ¶15.)

Cross-Defendants attempt to raise disputes regarding the factual accuracy of the Cross-Complaint's allegations by introducing evidence that Cross-Complainants' allegations regarding the forgery of Martin's signature on the subordination agreements is false. Factual disputes such as this are not appropriate for resolution on demurrer.

Accordingly, the demurrer to this cause of action is overruled.

COA 2: Breach of Implied Covenant of Good Faith and Fair Dealing

“The [implied] covenant of good faith and fair dealing [is] implied by law in every contract.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1369.) The covenant is read into contracts and functions “as a *supplement* to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.” (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031–1032.) The covenant also requires each party to do everything the contract presupposes the party will do to accomplish the agreement's purposes. (*Harm v. Frasher* (1960) 181 Cal.App.2d 405, 417.)

The cause of action as alleged in the SAXC is premised upon a breach of the covenant of good faith and fair dealing arising from the subordination agreements which Cross-Complainants allege were not valid contracts, as Martin's signature on those agreements was forged. Since there is no underlying contract, there is no implied covenant of good faith and fair dealing for Cross-Defendant to breach.

Accordingly, the demurrer to this cause of action is sustained.

COA 3: Fraud

To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant's knowledge of the falsity of the misrepresentation; (3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the misrepresentation; (5) causation; and (6) resulting damages. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2005) 35 Cal.4th 979, 990.)

“The elements of a claim for fraudulent concealment require a plaintiff to show that: ‘(1) the defendant . . . concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant . . . intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.’ ” (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1130.)

Fraud must be pleaded specifically to withstand a general demurrer. Thus, to state a legally sufficient cause of action for fraud, a plaintiff must plead specific facts that “show how, when, where, to whom, and by what means the representations were tendered.” (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.)

While Cross-Complainants have managed to submit a sprawling pleading of their third cause of action for fraud, the SAXC is not pleaded with sufficient particularity. The third cause of action is not pleaded clearly. It is not clear what the allegedly misrepresented and/or concealed material facts are, who engaged in the misrepresentation/concealment, and how Cross-Complainants relied upon any misrepresentation/concealment to their detriment. Accordingly, the demurrer to this cause of action is sustained.

Finally, Cross-Defendant appears to request the court to take judicial notice of emails transmitting a signed copy of the affirmation of the subordination agreement. This request is DENIED. As an initial matter, a request for judicial notice must be made in a separate document. (See Cal. Rules of Court 3.1113, subd. (l).) Additionally, even if the request was procedurally correct, Cross-Defendant has not established that this material is the proper subject of judicial notice.

The Case Management Conference is CONTINUED to August 27, 2026, at 9:30 a.m. in Department C12.

If they choose to, Cross-Complainants have 30 days to file a Third Amended Cross-Complaint.

Cross-Defendant shall provide notice of this ruling.

7.	Toluca Pointe, LLC vs. Woodruff 25-01496483	Motion to Quash Subpoena Defendants Kimberly Woodruff and David Woodruff's motion to quash third party subpoena is DENIED as moot . Plaintiff has withdrawn the subpoena Defendants seek to quash. Accordingly, there is no pending subpoena for the Court to quash. This motion remains on calendar, however, because Defendants seek monetary sanctions. Additionally, Plaintiff seeks sanctions. Plaintiff argues it is entitled to sanctions due to Defendants' refusal to withdraw the motion after the challenged subpoena was withdrawn. The court declines to award monetary sanctions to any party. Moving Party Defendants to give notice of this ruling.
8.	Xu vs. EQUITATION ROYALE LLC 25-01535570	Motion - Other (For Order Permitting Service of Summons) VACATED